

Virendra Verma v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 11 August 2016 · Writ-C No. 37364 of 2016 · **Writ connected; recovery citation stayed pending challenge to cl. 4.3(f)(v).**

HEADNOTE

On a writ against a recovery citation, the Allahabad High Court connected the petition with Writ-C No. 8370 of 2016, in which clause 4.3(f)(v) of the Electricity Supply Code, 2005 was under challenge, issued notice to the Advocate General and respondent no. 7, and directed that the recovery citation shall not be enforced against the petitioner, while leaving the respondents free to recover the dues from respondent no. 7.

FACTUAL SUMMARY

Virendra Verma invoked the writ jurisdiction of the Allahabad High Court against a recovery citation issued for electricity dues. The petition was connected with Writ-C No. 8370 of 2016, in which clause 4.3(f)(v) of the U.P. Electricity Supply Code, 2005 stood challenged. Notice issued to the Advocate General and respondent no. 7. The Court stayed enforcement of the recovery citation against the petitioner, while leaving the respondents free to recover the dues from respondent no. 7.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::4.3(f)(v)

challenge to cl. 4.3(f)(v); interim stay of recovery citation

HOLDING

Noting that clause 4.3(f)(v) of the Electricity Supply Code, 2005 was under challenge in connected Writ-C No. 8370 of 2016, the Court connected this writ, issued notice to the Advocate General and respondent no. 7, and directed that the recovery citation shall not be enforced against the petitioner, while leaving it open to the respondents to recover the dues from respondent no. 7. ¶ 1

PRINCIPLE TAGS

arrears-run-with-the-premises On a writ against a recovery citation, the Allahabad High Court connected the petition with Writ-C No. 8370 of 2016, in which clause 4.3(f)(v) of the Electricity Supply Code, 2005 was under challenge, issued notice to the Advocate General and respondent no.. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — VALIDITY OF CLAUSE 4.3(F)(V) OF THE ELECTRICITY SUPPLY CODE, 2005

The clause was under challenge in the connected writ; notice issued to the Advocate General; no decision on validity. ¶ 1

NOT DECIDED — MERITS OF THE RECOVERY CITATION AGAINST THE PETITIONER

Only interim non-enforcement was directed; dues left recoverable from respondent no. 7. ¶ 1